

PR-26-000396 ESTATE OF EDMISTON, MAX WAYLON – Petitioner’s Motion for Change of Venue – GRANTED in part and DENIED in part, and unopposed.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: It appearing to the Court that Merced County is indeed the correct venue for this case, the Court GRANTS the unopposed request for change of venue. Accordingly, the Court orders that the Clerk of the Court to transfer this case—including all pleadings, orders, and other documents in the court file—to Merced County. Any court costs associated with the transfer are to be paid by Petitioner. As for the request to transfer the original will (which is currently lodged under Case No. PR-26-000399), it is DENIED without prejudice. Under Probate Code § 8203, there are procedural requirements for transferring an original will, one of which is that the Petitioner must provide “the case number of the proceeding in the court to which transfer is prayed.” In addition, there must be no proceeding pending in the court from which the transfer is requested. It therefore appears to the Court that the transfer of the estate case must be completed first. Then the original will can be transferred through an ex parte petition. Moving Party is ordered to submit a proposed order within five court days that reflects this ruling.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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